

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 8, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at the Cheyenne Civic Center and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Segrave moved to approve, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 22, 2021. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on February 25, 2021. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on March 1, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a restaurant liquor license application filed with the City Clerk’s office for Machapuchare Inc. d/b/a Durbar Nepalese & Indian Bistro, 3515 E. Lincolnway, Cheyenne, Wyoming. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located north of Dell Range Boulevard west of Whitney Road. Seth Lloyd, Planning and Development, explained they received a petition to annex the land, provided information on the property and reviewed requirements of compliance with annexation conditions contained in state statutes. Upon inquiry, Mr. Lloyd advised he would provide information relating to the percentage of boundary that is contiguous, noting this information was provided in the department’s staff report documentation. Rod Stone provided information about the engineering firm on the proposed project stating they worked on the Thomas Heights project which has caused extensive flooding and damage to properties in the area. Mr. Stone referenced a city funded 3rd party review in the amount of \$26,000.00 which he doesn’t believe anything has been done with the report. Dave Grigsby

reported he bought his property in the area of Thomas Heights 30 years ago and has experienced flooding from the project's poor design. Larry Bechtle advised he also lives in the area and has experienced flooding since August 2017 following the construction of the Thomas Heights addition and that the flooding has damaged his septic system. Mr. Stone, Mr. Grigsby and Mr. Bechtle provided additional information relating to the development of Thomas Heights which has caused extensive damage and flooding the area and expressed frustration in trying to find resolve for those damages. They stated the city may want to consider restricting the engineering firm from these types of developments until restitution and repairs have taken place. They further provided comments relating to the Unified Development Code (UDC) which is supposed to ensure there is no damage to surrounding properties and referenced drainage issues in an area in Sun Valley that the same engineering firm designed. Mayor Collins advised the city is working towards a solution that will hopefully be completed in the near future for the Thomas Heights area. Mr. Grigsby also reported that City Engineer Thomas Cobb has been out to review the situation. Information was requested for additional solutions and it was noted some property owners were advised by the city that one option would be to get a personal loan to repair property damages and issues. It was noted that attempts to reach certain city officials regarding this issue have been challenging in the past. Discussion included concerns involving serious code violations, future developments with regards to damage to area properties from design flaws, determining who is responsible for repairing damage that may occur and future prevention efforts. Additional comments were made relating to the 2019 3rd party analysis receive by city, status of those results and lack of a solution for the problem. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located north of Dell Range Boulevard east of Griffith Avenue. Mark Christensen, Planning and Development, explained they received a petition to annex the land, provided information on the property and reviewed requirements of and compliance with annexation conditions contained in state statutes. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) Section 5.8.4, Fences. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Esquibel and Mr. Laybourn voting “no”. (#4345)

ORDINANCE –3rd READING – Amending the Unified Development Code of the City of Cheyenne, Wyoming, to create the definition, ‘Family Unit’ and amend the definition of ‘Dwelling Unit’. Ursula Schultz spoke in favor of the ordinance. Dr. Rinne moved to approve on third and final reading, seconded by Mr. White. Concern was expressed related to ordinance timing due to a housing crisis in the community and there not being an efficient way to monitor or enforce the ordinance. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Esquibel and Mr. Laybourn voting “no”. (#4346)

ORDINANCE –3rd READING – Amending various sections of Chapter 12.04, Streets,

Sidewalks, and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming. Amber Ash, Downtown Development Authority Executive Director, spoke in support of the ordinance stating the design committee for the DDA will be considering an amendment for an improvement grant that would provide eligibility for funding under that program with the goal of combining what the city is responsible for with the DDA to help contribute to get sidewalks in good condition. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Mr. Roybal moved to amend by substitute dated March 1, 2021, seconded by Mr. White. Mayor Collins advised the substitute amends the amount and definition of curb and gutter. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Concerns were voiced of deteriorating curb and gutter throughout the city. Mayor Collins advised this issue can be reviewed through the Pavement Management Program. Members of the governing body expressed appreciation to Mr. Laybourn for his continued efforts regarding failing concrete issues involving materials used and integrity of work being performed by contractors. Support was voiced to the DDA for embracing options for solutions and it was noted that this project is a starting point for a limited area that can be evaluated and potentially implemented in other areas of town. Discussion included potential for a 3rd party to review materials used for concrete and concerns with use of substandard materials and appreciation for looking at options for remediation and prevention of future concrete deterioration. Main motion as amended carried. Voting “yes” – all members of the governing body. (#4347)

ORDINANCE –2nd READING – Pursuant to Section 2.2.2 Planned Development Regulating Plan and Section 5.6.2 PUD-Planned Unit Development District, of the Cheyenne Unified Development Code (UDC) amending Ordinance Number 3741, which established The Village Planned Unit Development (PUD), to allow mixed use business (MUB) District Use on Lot 28 of Block 2 of The Village PUD located southwest of the intersection of Powderhouse Road and Old Town Lane. Dr. Rinne moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending Chapter 5.68, Body Art Establishments and Operations, of the Code of the City of Cheyenne, Wyoming. Alessandra McCoy Fakelman, Deputy City Attorney, provided a staff report stating this is a council initiated ordinance which includes mostly clerical language changes. Ms. McCoy Fakelman reported a notable change is on page 2 to Section 5.68.020 which no longer exempts gun piercing of ear lobes from licensing requirements and a change to the definition of language pertaining to minors receiving genitalia and breast area piercings and tattoos and noted she will also be proposing an amendment to that section. Steven Martinez, Bad Ass Tattoo Company, voiced concerns with the proposed changes. Mr. Martinez spoke to the longevity of businesses such as Claire’s that provide ear piercing services using a gun piercing system. He noted the proposed language would not allow for use of that system and would force patrons to seek more expensive services and spoke in opposition to the age restriction for this service. He provided information relating to current city code and state statutes involving requirements for minors including acceptable identification forms. Mr. Martinez further stated he is unaware of any Health Department concerns with infection associated with these services. He stated he is concerned the proposed changes will push people to seek services out of town or they will result to home self-piercing methods. Sativa Osiris, Diamond

Dog Piercing, voiced support and reported concern with the repeated use of the term simple lobe piercing and noted that piercing the skin by any method is modifying the body. Ms. Osiris advised the proposed regulations will allow such businesses as Claire's to perform ear piercing services if they meet body art licensing regulations. She noted the lack of sanitary conditions in stores such as Claire's as they don't currently have hand washing stations in their piercing areas and perform piercing services on carpeted surfaces. Mr. Roybal advised the item failed at the Finance Committee, therefore there is no recommendation from the committee. Mr. Roybal moved to approve on second reading, seconded by Dr. Aldrich. Dr. Aldrich moved to amend by substitute dated March 8, 2021, seconded by Mr. Roybal. Upon inquiry, Ms. McCoy Fakelman explained the proposed substitute clarifies the anatomical definition in Section 5.68.050(M) on page 7 by removing the word "breast" replacing it with "nipple". Motion to amend carried. Voting "yes" all members of the governing body with the exception of Mr. Johnson voting "no". Upon inquiry, Mayor Collins explained the strike out of language pertaining to use of a piercing gun system simply no longer exempts requirements of piercing. Ms. McCoy Fakelman confirmed the proposed language removes the exception and removes the gun piercing from the definition in its entirety. Upon inquiry, Dr. Aldrich reported a public forum was held and all current establishments holding body art licenses were notified and there were no other comments received other than those made by Mr. Martinez and Ms. Osiris. Upon further inquiry, Ms. McCoy Fakelman advised that by removing the exception for gun piercing systems, those types of piercing services will be required to follow current body art regulations. Discussion included support for unified health requirements and guidelines for body art services and support from the majority of the body artists in the community was received. Main motion as amended by substitute carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no".

ORDINANCE – 2nd READING – Amending Section 5.12.150, Suspension or Revocation of License; Denial of Permit, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Michael O'Donnell, City Attorney, advised there is a recommendation to amend Section 5.12.150 (a)(2) referencing any violation relating to any state or local law, noting it will be modified to laws related to alcohol. Upon inquiry from Bryan "Alf" Grzegorzczuk, Alf's Pub, on the intent of the ordinance, Mr. O'Donnell advised the intent is to fill a void in current city code that only allows for suspension or revocation at renewal period and this will allow for consideration to suspend or revoke any time during the licensing year upon violation of liquor laws. Alf voiced support and reported the majority of liquor licensees follow the laws. Mr. Roybal moved to approve on second reading, seconded by Dr. Aldrich. Mr. White moved to amend by substitute dated March 8, 2021, seconded by Mr. Segrave. [Clerk's note: Following adjournment of the meeting and upon inquiry, it was determined the correct substitute date is March 5, 2021]. Upon inquiry, Mr. O'Donnell provided additional information relating to violation of liquor laws and suspension and revocation process. Motion to amend carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn and Dr. Rinne voting "no". Main motion as amended by substitute carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

ORDINANCE – 1st READING – Amending Section 5.12.110, Open Container-Sales and Consumption-Exceptions, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5,

Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsors – Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB (Community Business) to MUB (Mixed-Use Business Emphasis) for property generally located at the southwest corner of the intersection of McCann Ave. and E. Pershing Blvd. – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) Section 6.6.3.b.1, Encroachments – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located north of Dell Range Boulevard, west of Whitney Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-2 Agricultural to MR Medium-Density Residential for land located north of Dell Range Boulevard, west of Whitney Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located north of Dell Range Boulevard and east of Griffith Avenue – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MR (Medium-Density Residential) to MR (Medium-Density Residential) for property generally located north of Dell Range Boulevard and east of Griffith Avenue – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2021 Budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6128)

RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant under the Staffing for Adequate Fire and Emergency Response (SAFER) Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of providing additional staffing. Mr. Roybal advised the item died at Finance Committee, therefore there was no recommendation from the committee. Mr. Roybal moved to adopt, seconded by Dr. Aldrich. Support for the resolution was expressed and comments were made related to the importance of additional staff during the pandemic, additional staff needed to man a new fire station, the importance of public safety and how attrition will likely occur due to retirements. Motion carried. Voting “yes” – all members of the governing body. (#6129)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Wyoming Department of Transportation, Highway Safety Program, Grant Funding for the City’s Mobile D.U.I. Command Vehicle – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Establishing an Affordable Housing Task Force to assess the current and projected future landscape of housing affordability in the City of Cheyenne – referred to Public Services Committee. (Sponsors – Mr. Laybourn and Mr. White)

[CA] RESOLUTION – Supporting and recommending the United States Congress propose and send to the states for ratification, an amendment to the United States Constitution clarifying the distinction between the rights of natural persons and the rights of corporations, unions, and other legal entities, and providing Congress and the State Legislatures the right to regulate monies raised and spent for political purposes – referred to Finance Committee. (Sponsors – Dr. Aldrich and Mr. Laybourn)

[CA] RESOLUTION – Authorizing the issuance and sale by the City of Cheyenne, Wyoming of Revenue Refunding Bonds, Series 2021, in a principal amount not to exceed \$5,445,000, for the purpose of refunding the City’s outstanding Refunding Revenue Bonds, Series 2012; prescribing the form of said Series 2021 Bonds; providing for the payment of the principal and interest thereon; ratifying, approving and confirming previous actions of officers and members of the Governing Body of the City and employees thereof; and determining other matters related to the bonds – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] Section 5307 COVID-19 Emergency Relief for Operations Grant Agreement between the City of Cheyenne and the Federal Transit Administration to fund Transit operations and purchase PPE related to COVID-19 (5307-Emergency Relief Grant). Motion (per Consent Agenda) carried (in the amount of \$1,156,906.00). (#7302)

[CA] Professional Services Agreement between the City of Cheyenne, Fire & Rescue Department and Stitches Acute Care Center to provide occupational medical exams (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Sponsorship Agreement between the City of Cheyenne and Spradley Barr Toyota for the 2021-2022 Performing Arts Series, Family Film Series Presenting Sponsor, Sponsor of the Cheyenne Civic Center audio control desk and as an Art Access Sponsor (revenue to the city) – referred to Finance Committee.

[CA] Sponsorship Agreement between the City of Cheyenne and HollyFrontier Cheyenne Renewable Diesel Company, LLC, to designate HollyFrontier as the Presenting Sponsor of SuperDay 2021, SuperDay Tour de Prairie and SuperDay 5K Walk/Run (revenue to the city) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District #1 to provide transportation services for the summer Rec Camp Program – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Employee On-Boarding Specialties for drug screening and alcohol testing services – referred to Finance Committee.

[CA] Contract Modification #1 for Renewal and Amendment of Agreement #7033 (Contract #7033) between the City of Cheyenne and Preserve Historic Wyoming, a Wyoming Non-Profit Organization, to remediate hazardous substances to renovate the building located at 1605 Central Avenue, Cheyenne, Wyoming (EPA Revolving Loan Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$24,632.51). (#7033)

[CA] Contract Modification #8 to Contract #6162 between the City of Cheyenne and CenturyLink Communications, LLC, for modification to the City's Metro Ethernet network servicing outlying offices. Motion (per Consent Agenda) carried. (#6162)

CA] Contract Modification #1 to Contract #7277 between the City of Cheyenne and 4 Quarters Excavation and Development for the East Cheyenne Community Park, Parking Lot and Trailhead Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-11-21 for a Contract between the City of Cheyenne and CXT, Inc. an LB Foster Company, Spokane, WA, for the Cheyenne Junior League Pre-Cast Restroom and Concession Building Project (Community Facility Fees and Recreation Mill Grant). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$385,522.00). (#7303)

[CA] Consideration of Bid #E-13-21 for furnishing eight (8) new four-door 2021 Model Utility (SUV) Police Interceptors, and one (1) 2021 Utility Cargo Vehicle (Van) for the City of Cheyenne, Cheyenne Police Department (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Spradley Barr Motors, Cheyenne, WY, in an amount not to exceed \$546,979.00).

[CA] Consideration of Bid #E-14-21 for furnishing eight (8) Motorola APX8500 Mobile Radios for the City of Cheyenne, Cheyenne Police Department (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Bearcom/Motorola, Evans, CO, in an amount not to exceed \$49,836.88).

[CA] Consideration of Bid #S-7-21 for a Contract between the City of Cheyenne and Synergy Construction, LLC, for the Happy Jack Landfill Front Entrance and Scale House Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-10-21 for a Contract between the City of Cheyenne and JTL Group Inc., d/b/a Knife River, for the 2021 City Overlay Part 1 Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-12-21 for a Contract between the City of Cheyenne and S & S Builders, LLC, for the Dey Avenue Greenway Connector Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-13-21 for a Contract between the City of Cheyenne and Simon Contractors, for the 2021 City Overlay Part 2 Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-17-21 for a furnishing four (4) utility carts for the City of Cheyenne Parks Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Request to expand retail liquor license premise dimensions for HEJE, Inc. d/b/a Outlaw Liquors, 4503 Western Way, Suite C. Motion (per Consent Agenda) carried.

[CA] Renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, winery and special malt beverage permits) filed with the City Clerk's Office. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held Monday, March 22, 2021, at 6:00 p.m. at the Cheyenne Civic Center, 510 W. 20th Street, Cheyenne, Wyoming, and via electronic conference meeting, for a transfer of retail liquor license application filed with the City Clerk's office for Redwood Saloon, LLC d/b/a/ Redwood Lounge & Package Liquors, 2105 E. Lincolnway, Cheyenne, Wyoming (license currently held by Ace Majestic, Inc. d/b/a Redwood Lounge and Package Liquors).

Under other business:

Mr. Johnson shared that he was contacted by a constituent who is a Navy veteran and recommended a street in the city to be named USS Cheyenne when a new one is constructed or renamed.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:21 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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